

VCU313509 Asman, Bruce E. et al vs. Ponce, Cipriano et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-08-13

Motion: Plaintiffs' Motion for Leave to File Amended Complaint

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Re: Asman, Bruce E. et al vs. Ponce, Cipriano et al

Case No.: VCU313509

Date: August 13, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: Plaintiffs' Motion for Leave to File Amended Complaint

Tentative Ruling: To continue the hearing to September 10, 2026; 8:30 am; D1 to allow Plaintiff an opportunity to file further declaration in compliance with California Rule of Court 3.1325a&b (see below). Plaintiff shall file his supplemental declaration no later than August 27, 2026. Defendant may file a supplemental reply by September 3, 2026.

Facts

On July 2, 2026, Plaintiffs filed this motion for leave to file a first amended complaint.

Plaintiffs stated "THE PROPOSED AMENDMENTS ARISE FROM THE SAME REAL PROPERTY TRANSACTION, INVOLVE THE SAME PARTIES, AND CONCERN THE SAME UNDERLYING DISPUTE THAT HAS BEEN BEFORE THE COURT SINCE THIS ACTION WAS FILED. PLAINTIFF DOES NOT SEEK TO INTRODUCE AN UNRELATED CONTROVERSY, BUT INSTEAD SEEKS TO CLARIFY THE FACTUAL ALLEGATIONS AND LEGAL THEORIES SO THAT THE ISSUES MAY BE RESOLVED ON THEIR MERITS."

Further that "PLAINTIFF ACTED PROMPTLY AFTER REVIEWING THE FILE TO PREPARE THE PROPOSED FIRST AMENDED COMPLAINT. THE REQUESTED AMENDMENT IS NOT MADE FOR PURPOSES OF DELAY, BUT TO PERMIT THE COURT TO DECIDE THE CONTROVERSY BASED UPON A COMPLETE PRESENTATION OF THE FACTS AND APPLICABLE LEGAL THEORIES."

Additionally, the motion states "THE PROPOSED FIRST AMENDED COMPLAINT CLARIFIES THE FACTUAL ALLEGATIONS AND ASSERTS ADDITIONAL LEGAL THEORIES RELATING TO THE PROPERTY DISPUTE, INCLUDING

ALLEGATIONS CONCERNING THE DETACHED GARAGE, THE PURCHASE TRANSACTION, AND THE CONDUCT OF THE PARTIES INVOLVED.”

The declaration in support states:

“4. THE PROPOSED FIRST AMENDED COMPLAINT ADDS AND CLARIFIES ALLEGATIONS CONCERNING, AMONG OTHER THINGS:

A.FRAUD AND MISREPRESENTATION;

B.FAILURE DISCLOSE MATERIAL FACTS

C.PROPERTY BOUNDARY AND OWNERSHIP ISSUES CONCERNING THE DETACHED GARAGE;

D.EASEMENTS AND PROPERTY USE RIGHTS;

E.NEGLIGENCE AND BREACH OF DUTY BY THE REAL ESTATE PROFESSIONALS INVOLVED IN THE TRANSACTION.”

Further, that “6.THE REQUEST FOR LEAVE TO AMEND WAS NOT MADE EARLIER BECAUSE I WAS REPRESENTED BY COUNSEL FOR MUCH OF THIS CASE. MY FIRST ATTORNEY WAS RELIEVED FROM THIS CASE, I RETAINED BRIAN FOLLAND, WHO REPRESENTED ME FOR APPROXIMATELY SIX MONTHS BEFORE HE WAS ALSO RELIEVED FROM THE CASE.”

Additionally, that “AFTER BOTH ATTORNEYS WERE NO LONGER REPRESENTING ME, I OBTAINED AND REVIEWED MY CASE FILE. DURING MY REVIEW, I DETERMINED THAT THE ORIGINAL COMPLAINT DID NOT FULLY INCLUDE ALL THE FACTUAL ALLEGATIONS AND LEGAL THEORIES THAT I BELIEVED WERE: SUPPORTED BY THE FACTS AND THE EVIDENCE IN MY POSSESSION. I ALSO IDENTIFIED INFORMATION I BELIEVE SHOULD BE INCLUDED TO ACCURATELY PRESENTS MY CLAIMS.”

Further, Plaintiffs provide a summary of the proposed amendments contained in the first amended complaint.

The first amended complaint appears to have been lodged on May 28, 2026.

In opposition, Defendants argue that the declaration and motion provide no facts supporting why Plaintiffs were unaware of the facts not contained in the original complaint, which was verified by Plaintiffs.

Authority and Analysis

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (Nestle v. Santa Monica (1972) 6 Cal.3d 920, 939; Mesler v. Bragg Management Co. (1985) 39 Cal.3d 290, 296 [“T]here is a strong policy in favor of liberal allowance of amendments.”].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (Hirsa v. Superior Court (1981) 118

Cal.App.3d 486, 490; Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

However, the Court finds a lack of compliance with California Rule of Court, Rule 3.1324. It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. (Hataishi v. First American Home Buyers Protection Corp. (2014) 223 Cal.App.4th 1454, 1469.)

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

“(a) Contents of motion

A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier.”

Here, while a copy of the proposed pleading appears lodged as of May 28, 2026, there appears no statement of allegations proposed to be deleted or added by page, paragraph and line number. The general summary on page 6 of the motion is insufficient under this Rule of Court.

As to subsection (b), while the Court acknowledges Plaintiffs were previously represented by two separate counsel, there remains no statement of when the facts giving rise to the amended allegations were discovered. Plaintiffs state that upon review of the file after the termination of the attorney-client relationship with the second counsel, it was discovered the operative complaint lacked factual allegations and legal theories. However, when the facts were discovered absent from the operative complaint is not the same as when the facts were actually discovered. It is not alleged, for instance, that discovery in this case uncovered additional facts that were not known at the time of the filing of the operative complaint. Moreover, as noted by Defendant, Plaintiffs’ verified the complaint in this matter, which states Plaintiffs read the complaint and were aware

of the contents.

However, the Court should not deny the motion unless the opposing party can show prejudice. (*Kittredge Sports Company v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048.)

Prejudice exists where amendment would: (1) cause a delay of trial; (2) increase preparation costs; (3) change the focus of the complaint; or (4) increase discovery burdens. (*Magpali*, supra, 48 Cal.App.4th 471, 486-488.) Additional discovery costs may support a claim for prejudice. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739 [“Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens.”].) Additionally, whether facts or legal theories are being changed and whether the opposing party will suffer prejudice “represent[] a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory—for example, an easement as opposed to a fee—no prejudice can result.” (*City of Stanton v. Cox* (1989) 207 Cal.App.3d 1557, 1563.)

The Court will review and consider the supplemental pleadings in this matter prior to issuing a final ruling. A tentative ruling will issue prior to the next hearing date.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.